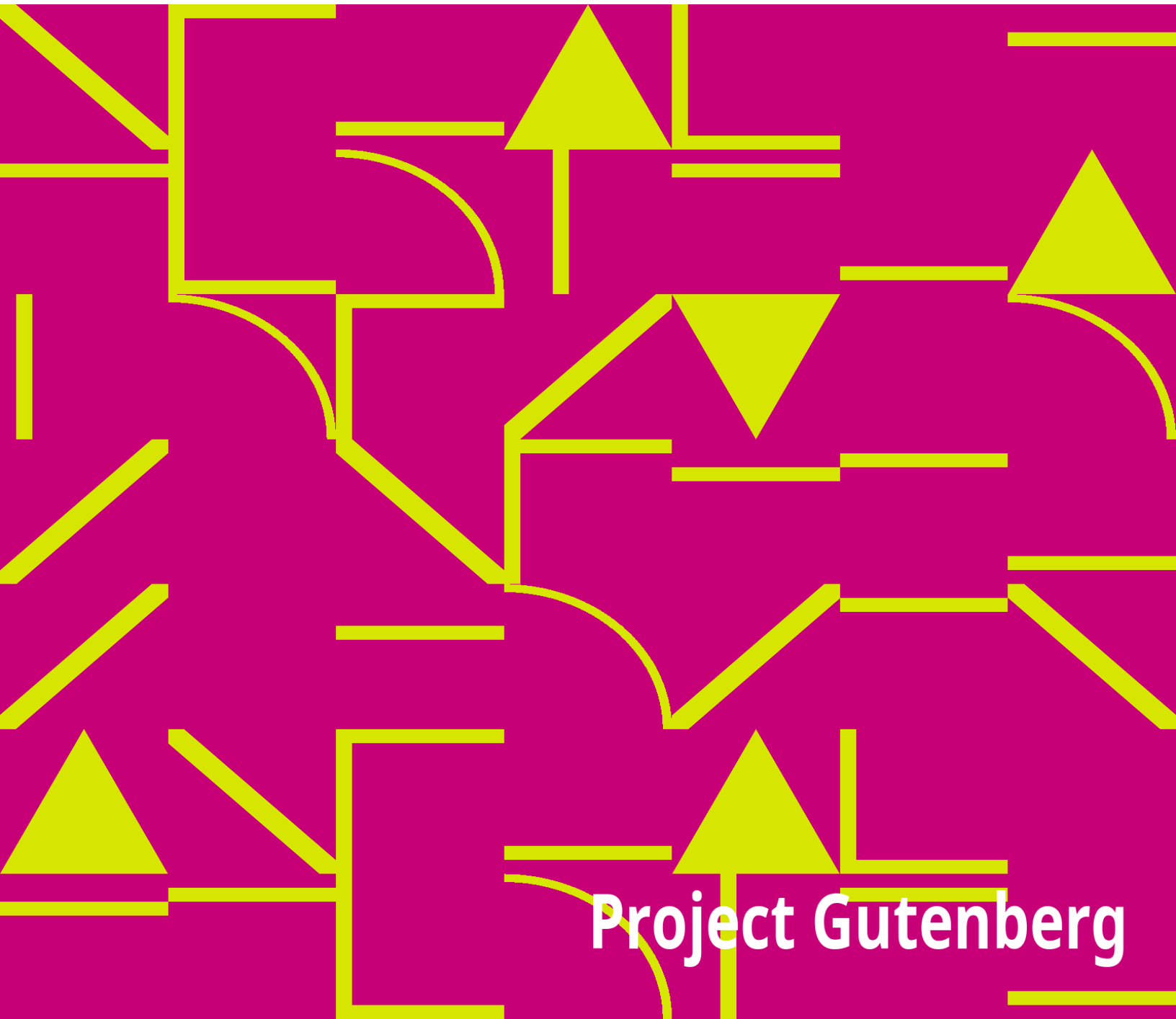


Moral Deliberations in Modern Cinema

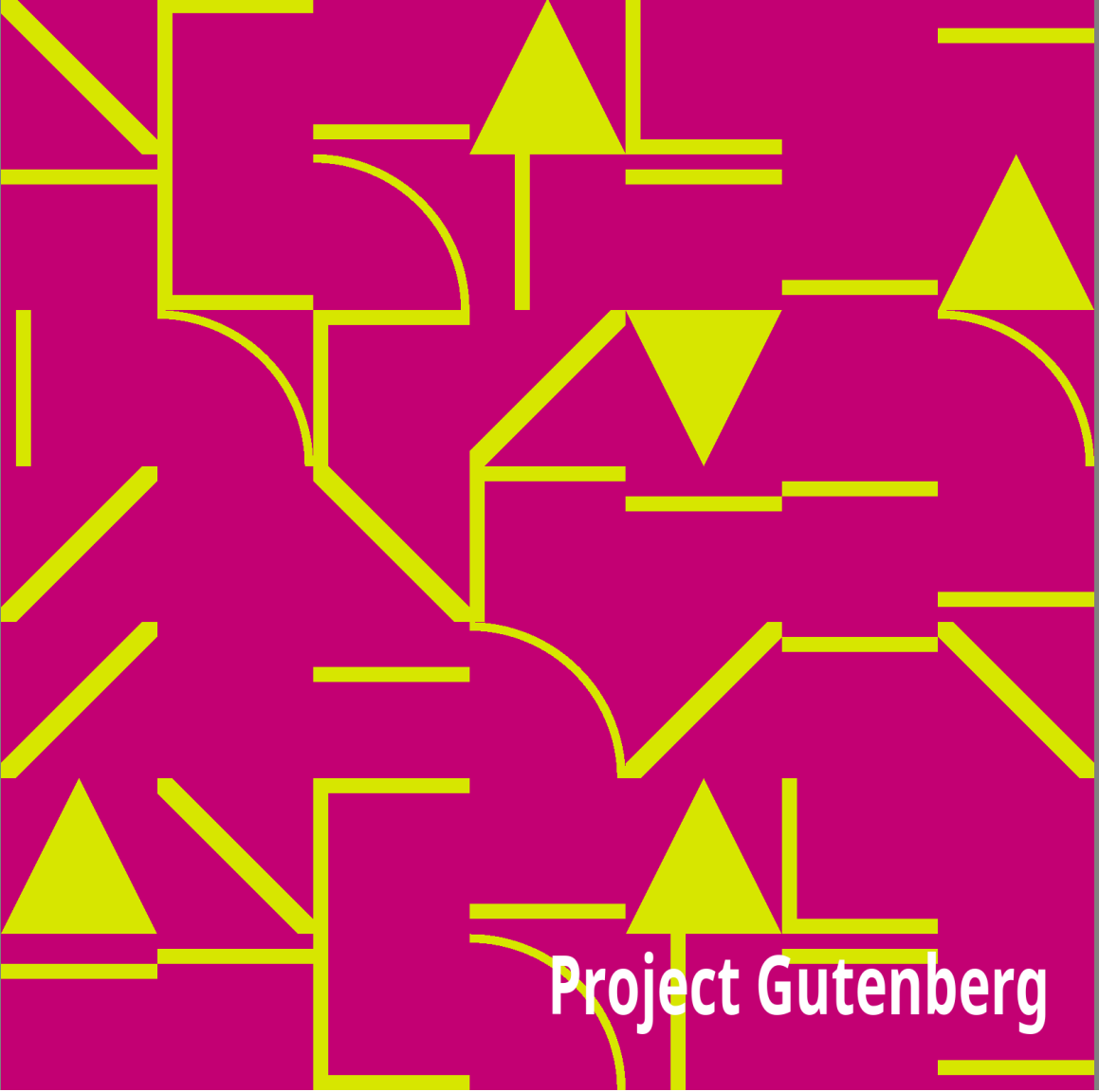
Samuel Vaknin and Lidija Rangelovska



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REPUBLIC OF MACEDONIA

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The Talented Mr. Ripley

By: Sam Vaknin

"The Talented Mr. Ripley" is an Hitchcockian and blood-curdling study of the psychopath and his victims. At the centre of this masterpiece, set in the exquisitely decadent scapes of Italy, is a titanic encounter between Ripley, the aforementioned psychopath protagonist and young Greenleaf, a consummate narcissist.

Ripley is a cartoonishly poor young adult whose overriding desire is to belong to a higher - or at least, richer - social class. While he waits upon the subjects of his not so hidden desires, he receives an offer he cannot refuse: to travel to Italy to retrieve the spoiled and hedonistic son of a shipbuilding magnate, Greenleaf Senior. He embarks upon a study of Junior's biography, personality, likes and hobbies. In a chillingly detailed process, he actually assumes Greenleaf's identity. Disembarking from a luxurious Cunard liner in his destination, Italy, he "confesses" to a gullible textile-heiress that he is the young Greenleaf, travelling incognito.

Thus, we are subtly introduced to the two over-riding themes of the antisocial personality disorder (still labelled by many professional

authorities "psychopathy" and "sociopathy"): an overwhelming dysphoria and an even more overweening drive to assuage this angst by belonging. The psychopath is an unhappy person. He is besieged by recurrent depression bouts, hypochondria and an overpowering sense of alienation and drift. He is bored with his own life and is permeated by a seething and explosive envy of the lucky, the mighty, the clever, the have it alls, the know it alls, the handsome, the happy - in short: his opposites. He feels discriminated against and dealt a poor hand in the great poker game called life. He is driven obsessively to right these perceived wrongs and feels entirely justified in adopting whatever means he deems necessary in pursuing this goal.

Ripley's reality test is maintained throughout the film. In other words - while he gradually merges with the object of his admiring emulation, the young Greenleaf - Ripley can always tell the difference. After he kills Greenleaf in self-defense, he assumes his name, wears his clothes, cashes his checks and makes phone calls from his rooms. But he also murders - or tries to murder - those who suspect the truth. These acts of lethal self-preservation prove conclusively that he knows who he is and that he fully realizes that his acts are parlously illegal.

Young Greenleaf is young, captivatingly energetic, infinitely charming, breathtakingly handsome and deceptively emotional. He lacks real talents - he know how to play only six jazz tunes, can't make up his musical mind between his faithful sax and a newly alluring drum kit and, an aspiring writer, can't even spell. These shortcomings and discrepancies are tucked under a glittering facade of non-chalance, refreshing spontaneity, an experimental spirit, unrepressed sexuality and unrestrained adventurism. But Greenleaf Jr. is a garden variety narcissist. He cheats on his lovely and loving girlfriend, Marge. He refuses to lend money - of which he seems to have an unlimited supply, courtesy his ever more disenchanted father - to a

girl he impregnated. She commits suicide and he blames the primitiveness of the emergency services, sulks and kicks his precious record player. In the midst of this infantile temper tantrum the rudiments of a conscience are visible. He evidently feels guilty. At least for a while.

Greenleaf Jr. falls in and out of love and friendship in a predictable pendulous rhythm. He idealizes his beaux and then devalues them. He finds them to be the quiddity of fascination one moment - and the distilled essence of boredom the next. And he is not shy about expressing his distaste and disenchantment. He is savagely cruel as he calls Ripley a leach who has taken over his life and his possessions (having previously invited him to do so in no uncertain terms). He says that he is relieved to see him go and he cancels off-handedly elaborate plans they made together. Greenleaf Jr. maintains a poor record of keeping promises and a rich record of violence, as we discover towards the end of this suspenseful, taut yarn.

Ripley himself lacks an identity. He is a binary automaton driven by a set of two instructions - become someone and overcome resistance. He feels like a nobody and his overriding ambition is to be somebody, even if he has to fake it, or steal it. His only talents, he openly admits, are to fake both personalities and papers. He is a predator and he hunts for congruence, cohesion and meaning. He is in constant search of a family. Greenleaf Jr., he declares festively, is the older brother he never had. Together with the long suffering fiancée in waiting, Marge, they are a family. Hasn't Greenleaf Sr. actually adopted him?

This identity disturbance, which is at the psychodynamic root of both pathological narcissism and rapacious psychopathy, is all-pervasive. Both Ripley and Greenleaf Jr. are not sure who they are. Ripley wants to be Greenleaf Jr. - not because of the latter's admirable personality, but because of his money. Greenleaf Jr. cultivates a False Self of a jazz giant in the

making and the author of the Great American Novel but he is neither and he bitterly knows it. Even their sexual identity is not fully formed. Ripley is at once homoerotic, autoerotic and heteroerotic. He has a succession of homosexual lovers (though apparently only platonic ones). Yet, he is attracted to women. He falls desperately in love with Greenleaf's False Self and it is the revelation of the latter's dilapidated True Self that leads to the atavistically bloody scene in the boat.

But Ripley is a different -and more ominous - beast altogether. He rambles on about the metaphorical dark chamber of his secrets, the key to which he wishes to share with a "loved" one. But this act of sharing (which never materializes) is intended merely to alleviate the constant pressure of the hot pursuit he is subjected to by the police and others. He disposes with equal equanimity of both loved ones and the occasional prying acquaintance. At least twice he utters words of love as he actually strangles his newfound inamorato and tries to slash an old and rekindled flame. He hesitates not a split second when confronted with an offer to betray Greenleaf Sr., his nominal employer and benefactor, and abscond with his money. He falsifies signatures with ease, makes eye contact convincingly, flashes the most heart rending smile when embarrassed or endangered. He is a caricature of the American dream: ambitious, driven, winsome, well versed in the mantras of the bourgeoisie. But beneath this thin veneer of hard learned, self-conscious and uneasy civility - lurks a beast of prey best characterized by the DSM IV (Diagnostic and Statistics Manual):

"Failure to conform to social norms with respect to lawful behaviour, deceitfulness as indicated by repeated lying, use of aliases, or conning others to personal profit or pleasure, impulsivity or failure to plan ahead... reckless disregard for safety of self or others ...(and above all) lack of remorse." (From the criteria of the Antisocial Personality Disorder).

But perhaps the most intriguing portraits are those of the victims. Marge insists, in the face of the most callous and abusive behaviour, that there is something "tender" in Greenleaf Jr. When she confronts the beguiling monster, Ripley, she encounters the fate of all victims of psychopaths: disbelief, pity and ridicule. The truth is too horrible to contemplate, let alone comprehend. Psychopaths are inhuman in the most profound sense of this compounded word. Their emotions and conscience have been amputated and replaced by phantom imitations. But it is rare to pierce their meticulously crafted facade. They more often than not go on to great success and social acceptance while their detractors are relegated to the fringes of society. Both Meredith and Peter, who had the misfortune of falling in deep, unrequited love with Ripley, are punished. One by losing his life, the other by losing Ripley time and again, mysteriously, capriciously, cruelly.

Thus, ultimately, the film is an intricate study of the pernicious ways of psychopathology. Mental disorder is a venom not confined to its source. It spreads and affects its environment in a myriad surreptitiously subtle forms. It is a hydra, growing one hundred heads where one was severed. Its victims writhe and as abuse is piled upon trauma - they turn to stone, the mute witnesses of horror, the stalactites and stalagmites of pain untold and unrecountable. For their tormentors are often as talented as Mr. Ripley is and they are as helpless and as clueless as his victims are.

The Truman Show

By: Sam Vaknin

"The Truman Show" is a profoundly disturbing movie. On the surface, it deals with the worn out issue of the intermingling of life and the media.

Examples for such incestuous relationships abound:

Ronald Reagan, the cinematic president was also a presidential movie star. In another movie ("The Philadelphia Experiment") a defrosted Rip Van Winkle exclaims upon seeing Reagan on television (40 years after his forced hibernation started): "I know this guy, he used to play Cowboys in the movies".

Candid cameras monitor the lives of webmasters (website owners) almost 24 hours a day. The resulting images are continuously posted on the Web and are available to anyone with a computer.

The last decade witnessed a spate of films, all concerned with the confusion between life and the imitations of life, the media. The ingenious "Capitan Fracasse", "Capricorn One", "Sliver", "Wag the Dog" and many lesser films have all tried to tackle this (un)fortunate state of things and its moral and practical implications.

The blurring line between life and its representation in the arts is arguably the main theme of "The Truman Show". The hero, Truman, lives in an artificial world, constructed especially for him. He was born and raised there. He knows no other place. The people around him - unbeknownst to him - are all actors. His life is monitored by 5000 cameras and broadcast live to the world, 24 hours a day, every day. He is spontaneous and funny because he is unaware of the monstrosity of which he is the main cogwheel.

But Peter Weir, the movie's director, takes this issue one step further by perpetrating a massive act of immorality on screen. Truman is lied to, cheated, deprived of his ability to make choices, controlled and manipulated by sinister, half-mad Shylocks. As I said, he is unwittingly the only spontaneous, non-scripted, "actor" in the on-going soap of his own life.

All the other figures in his life, including his parents, are actors. Hundreds of millions of viewers and voyeurs plug in to take a peep, to intrude upon what Truman innocently and honestly believes to be his privacy. They are shown responding to various dramatic or anti-climactic events in Truman's life. That we are the moral equivalent of these viewers-voyeurs, accomplices to the same crimes, comes as a shocking realization to us. We are (live) viewers and they are (celluloid) viewers. We both enjoy Truman's inadvertent, non-consenting, exhibitionism. We know the truth about Truman and so do they. Of course, we are in a privileged moral position because we know it is a movie and they know it is a piece of raw life that they are watching.

But moviegoers throughout Hollywood's history have willingly and insatiably participated in numerous "Truman Shows". The lives (real or concocted) of the studio stars were brutally exploited and incorporated in their films. Jean Harlow, Barbara Stanwyck, James Cagney all were forced to spill their guts in cathartic acts of on camera repentance and not so symbolic humiliation. "Truman Shows" is the more common phenomenon in the movie industry.

Then there is the question of the director of the movie as God and of God as the director of a movie. The members of his team - technical and non-technical alike - obey Christoff, the director, almost blindly. They suspend their better moral judgement and succumb to his whims and to the brutal and vulgar aspects of his pervasive dishonesty and sadism. The torturer loves his victims. They define him and infuse his life with meaning. Caught in a narrative, the movie says, people act immorally.

(IN)famous psychological experiments support this assertion. Students were led to administer what they thought were "deadly" electric shocks to their colleagues or to treat them bestially in simulated prisons. They obeyed

orders. So did all the hideous genocidal criminals in history. The Director Weir asks: should God be allowed to be immoral or should he be bound by morality and ethics? Should his decisions and actions be constrained by an over-riding code of right and wrong? Should we obey his commandments blindly or should we exercise judgement?

If we do exercise judgement are we then being immoral because God (and the Director Christoff) know more (about the world, about us, the viewers and about Truman), know better, are omnipotent? Is the exercise of judgement the usurpation of divine powers and attributes? Isn't this act of rebelliousness bound to lead us down the path of apocalypse?

It all boils down to the question of free choice and free will versus the benevolent determinism imposed by an omniscient and omnipotent being. What is better: to have the choice and be damned (almost inevitably, as in the biblical narrative of the Garden of Eden) - or to succumb to the superior wisdom of a supreme being? A choice always involves a dilemma. It is the conflict between two equivalent states, two weighty decisions whose outcomes are equally desirable and two identically-preferable courses of action. Where there is no such equivalence - there is no choice, merely the pre-ordained (given full knowledge) exercise of a preference or inclination. Bees do not choose to make honey. A fan of football does not choose to watch a football game. He is motivated by a clear inequity between the choices that he faces. He can read a book or go to the game. His decision is clear and pre-determined by his predilection and by the inevitable and invariable implementation of the principle of pleasure. There is no choice here. It is all rather automatic. But compare this to the choice some victims had to make between two of their children in the face of Nazi brutality. Which child to sentence to death - which one to sentence to life? Now, this is a real choice. It involves conflicting emotions of equal strength. One must not confuse decisions, opportunities and choice.

Decisions are the mere selection of courses of action. This selection can be the result of a choice or the result of a tendency (conscious, unconscious, or biological-genetic). Opportunities are current states of the world, which allow for a decision to be made and to affect the future state of the world. Choices are our conscious experience of moral or other dilemmas.

Christoff finds it strange that Truman - having discovered the truth - insists upon his right to make choices, i.e., upon his right to experience dilemmas. To the Director, dilemmas are painful, unnecessary, destructive, or at best disruptive. His utopian world - the one he constructed for Truman - is choice-free and dilemma-free. Truman is programmed not in the sense that his spontaneity is extinguished. Truman is wrong when, in one of the scenes, he keeps shouting: "Be careful, I am spontaneous". The Director and fat-cat capitalistic producers want him to be spontaneous, they want him to make decisions. But they do not want him to make choices. So they influence his preferences and predilections by providing him with an absolutely totalitarian, micro-controlled, repetitive environment. Such an environment reduces the set of possible decisions so that there is only one favourable or acceptable decision (outcome) at any junction. Truman does decide whether to walk down a certain path or not. But when he does decide to walk - only one path is available to him. His world is constrained and limited - not his actions.

Actually, Truman's only choice in the movie leads to an arguably immoral decision. He abandons ship. He walks out on the whole project. He destroys an investment of billions of dollars, people's lives and careers. He turns his back on some of the actors who seem to really be emotionally attached to him. He ignores the good and pleasure that the show has brought to the lives of millions of people (the viewers). He selfishly and vengefully goes away. He knows all this. By the time he makes his decision, he is fully informed. He knows that some people may commit

suicide, go bankrupt, endure major depressive episodes, do drugs. But this massive landscape of resulting devastation does not deter him. He prefers his narrow, personal, interest. He walks.

But Truman did not ask or choose to be put in his position. He found himself responsible for all these people without being consulted. There was no consent or act of choice involved. How can anyone be responsible for the well-being and lives of other people - if he did not CHOOSE to be so responsible? Moreover, Truman had the perfect moral right to think that these people wronged him. Are we morally responsible and accountable for the well-being and lives of those who wrong us? True Christians are, for instance.

Moreover, most of us, most of the time, find ourselves in situations which we did not help mould by our decisions. We are unwillingly cast into the world. We do not provide prior consent to being born. This fundamental decision is made for us, forced upon us. This pattern persists throughout our childhood and adolescence: decisions are made elsewhere by others and influence our lives profoundly.

As adults we are the objects - often the victims - of the decisions of corrupt politicians, mad scientists, megalomaniac media barons, gung-ho generals and demented artists. This world is not of our making and our ability to shape and influence it is very limited and rather illusory. We live in our own "Truman Show". Does this mean that we are not morally responsible for others?

We are morally responsible even if we did not choose the circumstances and the parameters and characteristics of the universe that we inhabit. The Swedish Count Wallenberg imperilled his life (and lost it) smuggling hunted Jews out of Nazi occupied Europe. He did not choose, or helped to shape Nazi Europe. It was the brainchild of the deranged Director Hitler.

Having found himself an unwilling participant in Hitler's horror show, Wallenberg did not turn his back and opted out. He remained within the bloody and horrific set and did his best. Truman should have done the same. Jesus said that he should have loved his enemies. He should have felt and acted with responsibility towards his fellow human beings, even towards those who wronged him greatly.

But this may be an inhuman demand. Such forgiveness and magnanimity are the reserve of God. And the fact that Truman's tormentors did not see themselves as such and believed that they were acting in his best interests and that they were catering to his every need - does not absolve them from their crimes. Truman should have maintained a fine balance between his responsibility to the show, its creators and its viewers and his natural drive to get back at his tormentors. The source of the dilemma (which led to his act of choosing) is that the two groups overlap.

Truman found himself in the impossible position of being the sole guarantor of the well-being and lives of his tormentors. To put the question in sharper relief: are we morally obliged to save the life and livelihood of someone who greatly wronged us? Or is vengeance justified in such a case?

A very problematic figure in this respect is that of Truman's best and childhood friend. They grew up together, shared secrets, emotions and adventures. Yet he lies to Truman constantly and under the Director's instructions. Everything he says is part of a script. It is this disinformation that convinces us that he is not Truman's true friend. A real friend is expected, above all, to provide us with full and true information and, thereby, to enhance our ability to choose. Truman's true love in the Show tried to do it. She paid the price: she was ousted from the show. But she tried to provide Truman with a choice. It is not sufficient to say the right things and make the right moves. Inner drive and motivation are required

and the willingness to take risks (such as the risk of providing Truman with full information about his condition). All the actors who played Truman's parents, loving wife, friends and colleagues, miserably failed on this score.

It is in this mimicry that the philosophical key to the whole movie rests. A Utopia cannot be faked. Captain Nemo's utopian underwater city was a real Utopia because everyone knew everything about it. People were given a choice (though an irreversible and irrevocable one). They chose to become lifetime members of the reclusive Captain's colony and to abide by its (overly rational) rules.

The Utopia came closest to extinction when a group of stray survivors of a maritime accident were imprisoned in it against their expressed will. In the absence of choice, no utopia can exist. In the absence of full, timely and accurate information, no choice can exist. Actually, the availability of choice is so crucial that even when it is prevented by nature itself - and not by the designs of more or less sinister or monomaniac people - there can be no Utopia. In H.G. Wells' book "The Time Machine", the hero wanders off to the third millennium only to come across a peaceful Utopia. Its members are immortal, don't have to work, or think in order to survive. Sophisticated machines take care of all their needs. No one forbids them to make choices. There simply is no need to make them. So the Utopia is fake and indeed ends badly.

Finally, the "Truman Show" encapsulates the most virulent attack on capitalism in a long time. Greedy, thoughtless money machines in the form of billionaire tycoon-producers exploit Truman's life shamelessly and remorselessly in the ugliest display of human vices possible. The Director indulges in his control-mania. The producers indulge in their monetary obsession. The viewers (on both sides of the silver screen) indulge in voyeurism. The actors vie and compete in the compulsive activity of

furthering their petty careers. It is a repulsive canvas of a disintegrating world. Perhaps Christoff is right after all when he warns Truman about the true nature of the world. But Truman chooses. He chooses the exit door leading to the outer darkness over the false sunlight in the Utopia that he leaves behind.

The Matrix

By: Sam Vaknin

It is easy to confuse the concepts of "virtual reality" and a "computerized model of reality (simulation)". The former is a self-contained Universe, replete with its "laws of physics" and "logic". It can bear resemblance to the real world or not. It can be consistent or not. It can interact with the real world or not. In short, it is an arbitrary environment. In contrast, a model of reality must have a direct and strong relationship to the world. It must obey the rules of physics and of logic. The absence of such a relationship renders it meaningless. A flight simulator is not much good in a world without aeroplanes or if it ignores the laws of nature. A technical analysis program is useless without a stock exchange or if its mathematics are erroneous.

Yet, the two concepts are often confused because they are both mediated by and reside on computers. The computer is a self-contained (though not closed) Universe. It incorporates the hardware, the data and the instructions for the manipulation of the data (software). It is, therefore, by definition, a virtual reality. It is versatile and can correlate its reality with the world outside. But it can also refrain from doing so. This is the ominous "what if" in artificial intelligence (AI). What if a computer were to refuse to correlate its internal (virtual) reality with the reality of its makers? What if it were to impose its own reality on us and make it the privileged one?

In the visually tantalizing movie, "The Matrix", a breed of AI computers takes over the world. It harvests human embryos in laboratories called "fields". It then feeds them through grim looking tubes and keeps them immersed in gelatinous liquid in cocoons. This new "machine species" derives its energy needs from the electricity produced by the billions of human bodies thus preserved. A sophisticated, all-pervasive, computer program called "The Matrix" generates a "world" inhabited by the consciousness of the unfortunate human batteries. Ensconced in their shells, they see themselves walking, talking, working and making love. This is a tangible and olfactory phantasm masterfully created by the Matrix. Its computing power is mind boggling. It generates the minutest details and reams of data in a spectacularly successful effort to maintain the illusion.

A group of human miscreants succeeds to learn the secret of the Matrix. They form an underground and live aboard a ship, loosely communicating with a halcyon city called "Zion", the last bastion of resistance. In one of the scenes, Cypher, one of the rebels defects. Over a glass of (illusory) rubicund wine and (spectral) juicy steak, he poses the main dilemma of the movie. Is it better to live happily in a perfectly detailed delusion - or to survive unhappily but free of its hold?

The Matrix controls the minds of all the humans in the world. It is a bridge between them, they inter-connected through it. It makes them share the same sights, smells and textures. They remember. They compete. They make decisions.

The Matrix is sufficiently complex to allow for this apparent lack of determinism and ubiquity of free will. The root question is: is there any difference between making decisions and feeling certain of making them (not having made them)? If one is unaware of the existence of the Matrix, the answer is no. From the inside, as a part of the Matrix, making decisions

and appearing to be making them are identical states. Only an outside observer - one who in possession of full information regarding both the Matrix and the humans - can tell the difference.

Moreover, if the Matrix were a computer program of infinite complexity, no observer (finite or infinite) would have been able to say with any certainty whose a decision was - the Matrix's or the human's. And because the Matrix, for all intents and purposes, is infinite compared to the mind of any single, tube-nourished, individual - it is safe to say that the states of "making a decision" and "appearing to be making a decision" are subjectively indistinguishable. No individual within the Matrix would be able to tell the difference. His or her life would seem to him or her as real as ours are to us. The Matrix may be deterministic - but this determinism is inaccessible to individual minds because of the complexity involved. When faced with a trillion deterministic paths, one would be justified to feel that he exercised free, unconstrained will in choosing one of them. Free will and determinism are indistinguishable at a certain level of complexity.

Yet, we KNOW that the Matrix is different to our world. It is NOT the same. This is an intuitive kind of knowledge, for sure, but this does not detract from its firmness. If there is no subjective difference between the Matrix and our Universe, there must be an objective one. Another key sentence is uttered by Morpheus, the leader of the rebels. He says to "The Chosen One" (the Messiah) that it is really the year 2199, though the Matrix gives the impression that it is 1999.

This is where the Matrix and reality diverge. Though a human who would experience both would find them indistinguishable - objectively they are different. In one of them (the Matrix), people have no objective TIME (though the Matrix might have it). The other (reality) is governed by it.

Under the spell of the Matrix, people feel as though time goes by. They have functioning watches. The sun rises and sets. Seasons change. They grow old and die. This is not entirely an illusion. Their bodies do decay and die, as ours do. They are not exempt from the laws of nature. But their AWARENESS of time is computer generated. The Matrix is sufficiently sophisticated and knowledgeable to maintain a close correlation between the physical state of the human (his health and age) and his consciousness of the passage of time. The basic rules of time - for instance, its asymmetry - are part of the program.

But this is precisely it. Time in the minds of these people is program-generated, not reality-induced. It is not the derivative of change and irreversible (thermodynamic and other) processes OUT THERE. Their minds are part of a computer program and the computer program is a part of their minds.

Their bodies are static, degenerating in their protective nests. Nothing happens to them except in their minds. They have no physical effect on the world. They effect no change. These things set the Matrix and reality apart.

To "qualify" as reality a two-way interaction must occur. One flow of data is when reality influences the minds of people (as does the Matrix). The obverse, but equally necessary, type of data flow is when people know reality and influence it. The Matrix triggers a time sensation in people the same way that the Universe triggers a time sensation in us. Something does happen OUT THERE and it is called the Matrix. In this sense, the Matrix is real, it is the reality of these humans. It maintains the requirement of the first type of flow of data. But it fails the second test: people do not know that it exists or any of its attributes, nor do they affect it irreversibly. They do not change the Matrix. Paradoxically, the rebels do affect the Matrix

(they almost destroy it). In doing so, they make it REAL. It is their REALITY because they KNOW it and they irreversibly CHANGE it.

Applying this dual-track test, "virtual" reality IS a reality, albeit, at this stage, of a deterministic type. It affects our minds, we know that it exists and we affect it in return. Our choices and actions irreversibly alter the state of the system. This altered state, in turn, affects our minds. This interaction IS what we call "reality". With the advent of stochastic and quantum virtual reality generators - the distinction between "real" and "virtual" will fade. The Matrix thus is not impossible. But that it is possible - does not make it real.

The Shattered Identity

By: Sam Vaknin

Read these essays first:

The Habitual Identity

Death, Meaning, and Identity

Fact and Truth

Dreams - The Metaphors of Mind

I. Exposition

In the movie "Shattered" (1991), Dan Merrick survives an accident and develops total amnesia regarding his past. His battered face is reconstructed by plastic surgeons and, with the help of his loving wife, he gradually

recovers his will to live. But he never develops a proper sense of identity. It is as though he is constantly ill at ease in his own body. As the plot unravels, Dan is led to believe that he may have murdered his wife's lover, Jack. This thriller offers additional twists and turns but, throughout it all, we face this question:

Dan has no recollection of being Dan. Dan does not remember murdering Jack. It seems as though Dan's very identity has been erased. Yet, Dan is in sound mind and can tell right from wrong. Should Dan be held (morally and, as a result, perhaps legally as well) accountable for Jack's murder?

Would the answer to this question still be the same had Dan erased from his memory ONLY the crime -but recalled everything else (in an act of selective dissociation)? Do our moral and legal accountability and responsibility spring from the integrity of our memories? If Dan were to be punished for a crime he doesn't have the faintest recollection of committing - wouldn't he feel horribly wronged? Wouldn't he be justified in feeling so?

There are many states of consciousness that involve dissociation and selective amnesia: hypnosis, trance and possession, hallucination, illusion, memory disorders (like organic, or functional amnesia), depersonalization disorder, dissociative fugue, dreaming, psychosis, post traumatic stress disorder, and drug-induced psychotomimetic states.

Consider this, for instance:

What if Dan were the victim of a Multiple Personality Disorder (now known as "Dissociative Identity Disorder")? What if one of his "alters" (i.e., one of the multitude of "identities" sharing Dan's mind and body) committed the crime? Should Dan still be held responsible? What if the alter "John" committed the crime and then "vanished", leaving behind another alter (let us say, "Joseph") in control?

Should "Joseph" be held responsible for the crime "John" committed? What if "John" were to reappear 10 years after he "vanished"? What if he were to reappear 50 years after he "vanished"? What if he were to reappear for a period of 90 days - only to "vanish" again? And what is Dan's role in all this? Who, exactly, then, is Dan?

II. Who is Dan?

Buddhism compares Man to a river. Both retain their identity despite the fact that their individual composition is different at different moments. The possession of a body as the foundation of a self-identity is a dubious proposition. Bodies change drastically in time (consider a baby compared to an adult). Almost all the cells in a human body are replaced every few years. Changing one's brain (by transplantation) - also changes one's identity, even if the rest of the body remains the same.

Thus, the only thing that binds a "person" together (i.e., gives him a self and an identity) is time, or, more precisely, memory. By "memory" I also mean: personality, skills, habits, retrospected emotions - in short: all long term imprints and behavioural patterns. The body is not an accidental and insignificant container, of course. It constitutes an important part of one's self-image, self-esteem, sense of self-worth, and sense of existence (spatial, temporal, and social). But one can easily imagine a brain in vitro as having the same identity as when it resided in a body. One cannot imagine a body without a brain (or with a different brain) as having the same identity it had before the brain was removed or replaced.

What if the brain in vitro (in the above example) could not communicate with us at all? Would we still think it is possessed of a self? The biological functions of people in coma are maintained. But do they have an identity, a self? If yes, why do we "pull the plug" on them so often?

It would seem (as it did to Locke) that we accept that someone has a self-identity if: (a) He has the same hardware as we do (notably, a brain) and (b) He communicates his humanly recognizable and comprehensible inner world to us and manipulates his environment. We accept that he has a given (i.e., the same continuous) self-identity if (c) He shows consistent intentional (i.e., willed) patterns ("memory") in doing (b) for a long period of time.

It seems that we accept that we have a self-identity (i.e., we are self-conscious) if (a) We discern (usually through introspection) long term consistent intentional (i.e., willed) patterns ("memory") in our manipulation ("relating to") of our environment and (b) Others accept that we have a self-identity (Herbert Mead, Feuerbach).

Dan (probably) has the same hardware as we do (a brain). He communicates his (humanly recognizable and comprehensible) inner world to us (which is how he manipulates us and his environment). Thus, Dan clearly has a self-identity. But he is inconsistent. His intentional (willed) patterns, his memory, are incompatible with those demonstrated by Dan before the accident. Though he clearly is possessed of a self-identity, we cannot say that he has the SAME self-identity he possessed before the crash. In other words, we cannot say that he, indeed, is Dan.

Dan himself does not feel that he has a self-identity at all. He discerns intentional (willed) patterns in his manipulation of his environment but, due to his amnesia, he cannot tell if these are consistent, or long term. In other words, Dan has no memory. Moreover, others do not accept him as Dan (or have their doubts) because they have no memory of Dan as he is now.

Interim conclusion:

Having a memory is a necessary and sufficient condition for possessing a self-identity.

III. Repression

Yet, resorting to memory to define identity may appear to be a circular (even tautological) argument. When we postulate memory - don't we already presuppose the existence of a "remembering agent" with an established self-identity?

Moreover, we keep talking about "discerning", "intentional", or "willed" patterns. But isn't a big part of our self (in the form of the unconscious, full of repressed memories) unavailable to us? Don't we develop defence mechanisms against repressed memories and fantasies, against unconscious content incongruent with our self-image? Even worse, this hidden, inaccessible, dynamically active part of our self is thought responsible for our recurrent discernible patterns of behaviour. The phenomenon of posthypnotic suggestion seems to indicate that this may be the case. The existence of a self-identity is, therefore, determined through introspection (by oneself) and observation (by others) of merely the conscious part of the self.

But the unconscious is as much a part of one's self-identity as one's conscious. What if, due to a mishap, the roles were reversed? What if Dan's conscious part were to become his unconscious and his unconscious part - his conscious? What if all his conscious memories, drives, fears, wishes, fantasies, and hopes - were to become unconscious while his repressed memories, drives, etc. - were to become conscious? Would we still say that it is "the same" Dan and that he retains his self-identity? Not very likely. And yet, one's (unremembered) unconscious - for instance, the conflict between id and ego - determines one's personality and self-identity.

The main contribution of psychoanalysis and later psychodynamic schools is the understanding that self-identity is a dynamic, evolving, ever-changing construct - and not a static, inertial, and passive entity. It casts doubt over the meaningfulness of the question with which we ended the exposition: "Who, exactly, then, is Dan?" Dan is different at different stages of his life (Erikson) and he constantly evolves in accordance with his innate nature (Jung), past history (Adler), drives (Freud), cultural milieu (Horney), upbringing (Klein, Winnicott), needs (Murray), or the interplay with his genetic makeup. Dan is not a thing - he is a process. Even Dan's personality traits and cognitive style, which may well be stable, are often influenced by Dan's social setting and by his social interactions.

It would seem that having a memory is a necessary but insufficient condition for possessing a self-identity. One cannot remember one's unconscious states (though one can remember their outcomes). One often forgets events, names, and other information even if it was conscious at a given time in one's past. Yet, one's (unremembered) unconscious is an integral and important part of one's identity and one's self. The remembered as well as the unremembered constitute one's self-identity.

IV. The Memory Link

Hume said that to be considered in possession of a mind, a creature needs to have a few states of consciousness linked by memory in a kind of narrative or personal mythology. Can this conjecture be equally applied to unconscious mental states (e.g. subliminal perceptions, beliefs, drives, emotions, desires, etc.)?

In other words, can we rephrase Hume and say that to be considered in possession of a mind, a creature needs to have a few states of consciousness and a few states of the unconscious - all linked by memory into a personal narrative? Isn't it a contradiction in terms to remember the unconscious?

The unconscious and the subliminal are instance of the general category of mental phenomena which are not states of consciousness (i.e., are not conscious). Sleep and hypnosis are two others. But so are "background mental phenomena" - e.g., one holds onto one's beliefs and knowledge even when one is not aware (conscious) of them at every given moment.

We know that an apple will fall towards the earth, we know how to drive a car ("automatically"), and we believe that the sun will rise tomorrow, even though we do not spend every second of our waking life consciously thinking about falling apples, driving cars, or the position of the sun.

Yet, the fact that knowledge and beliefs and other background mental phenomena are not constantly conscious - does not mean that they cannot be remembered. They can be remembered either by an act of will, or in (sometimes an involuntary) response to changes in the environment. The same applies to all other unconscious content. Unconscious content can be recalled. Psychoanalysis, for instance, is about re-introducing repressed unconscious content to the patient's conscious memory and thus making it "remembered".

In fact, one's self-identity may be such a background mental phenomenon (always there, not always conscious, not always remembered). The acts of will which bring it to the surface are what we call "memory" and "introspection".

This would seem to imply that having a self-identity is independent of having a memory (or the ability to introspect). Memory is just the mechanism by which one becomes aware of one's background, "always-on", and omnipresent (all-pervasive) self-identity. Self-identity is the object and predicate of memory and introspection. It is as though self-identity were an emergent extensive parameter of the complex human system - measurable by the dual techniques of memory and introspection.

We, therefore, have to modify our previous conclusions:

Having a memory is not a necessary nor a sufficient condition for possessing a self-identity.

We are back to square one. The poor souls in Oliver Sacks' tome, "The Man Who Mistook his Wife for a Hat" are unable to create and retain memories. They occupy an eternal present, with no past. They are thus unable to access (or invoke) their self-identity by remembering it. Their self-identity is unavailable to them (though it is available to those who observe them over many years) - but it exists for sure. Therapy often succeeds in restoring pre-amnesiac memories and self-identity.

V. The Incorrigible Self

Self-identity is not only always-on and all-pervasive - but also incorrigible. In other words, no one - neither an observer, nor the person himself - can "disprove" the existence of his self-identity. No one can prove that a report about the existence of his (or another's) self-identity is mistaken.

Is it equally safe to say that no one - neither an observer, nor the person himself - can prove (or disprove) the non-existence of his self-identity? Would it be correct to say that no one can prove that a report about the non-existence of his (or another's) self-identity is true or false?

Dan's criminal responsibility crucially depends on the answers to these questions. Dan cannot be held responsible for Jack's murder if he can prove that he is ignorant of the facts of his action (i.e., if he can prove the non-existence of his self-identity). If he has no access to his (former) self-identity - he can hardly be expected to be aware and cognizant of these facts.

What is in question is not Dan's mens rea, nor the application of the McNaghten tests (did Dan know the nature and quality of his act or could he tell right from wrong) to determine whether Dan was insane when he committed the crime. A much broader issue is at stake: is it the same person? Is the murderous Dan the same person as the current Dan? Even though Dan seems to own the same body and brain and is manifestly sane - he patently has no access to his (former) self-identity. He has changed so drastically that it is arguable whether he is still the same person - he has been "replaced".

Finally, we can try to unite all the strands of our discourse into this double definition:

It would seem that we accept that someone has a self-identity if: (a) He has the same hardware as we do (notably, a brain) and, by implication, the same software as we do (an all-pervasive, omnipresent self-identity) and (b) He communicates his humanly recognizable and comprehensible inner world to us and manipulates his environment. We accept that he has a specific (i.e., the same continuous) self-identity if (c) He shows consistent intentional (i.e., willed) patterns ("memory") in doing (b) for a long period of time.

It seems that we accept that we have a specific self-identity (i.e., we are self-conscious of a specific identity) if (a) We discern (usually through memory and introspection) long term consistent intentional (i.e., willed) patterns ("memory") in our manipulation ("relating to") of our environment and (b) Others accept that we have a specific self-identity.

In conclusion: Dan undoubtedly has a self-identity (being human and, thus, endowed with a brain). Equally undoubtedly, this self-identity is not Dan's (but a new, unfamiliar, one).

Such is the stuff of our nightmares - body snatching, demonic possession, waking up in a strange place, not knowing who we are. Without a continuous personal history - we are not. It is what binds our various bodies, states of mind, memories, skills, emotions, and cognitions - into a coherent bundle of identity. Dan speaks, drinks, dances, talks, and makes love - but throughout that time, he is not present because he does not remember Dan and how it is to be Dan. He may have murdered Jake - but, by all philosophical and ethical criteria, it was most definitely not his fault.

Titanic, or a Moral Deliberation

By: Sam Vaknin

The film "Titanic" is riddled with moral dilemmas. In one of the scenes, the owner of Star Line, the shipping company that owned the now-sinking Unsinkable, joins a lowered life-boat. The tortured expression on his face demonstrates that even he experiences more than unease at his own conduct. Prior to the disaster, he instructs the captain to adopt a policy dangerous to the ship. Indeed, it proves fatal. A complicating factor was the fact that only women and children were allowed by the officers in charge into the lifeboats. Another was the discrimination against Third Class passengers. The boats sufficed only to half the number of those on board and the First Class, High Society passengers were preferred over the Low-Life immigrants under deck.

Why do we all feel that the owner should have stayed on and faced his inevitable death? Because we judge him responsible for the demise of the ship. Additionally, his wrong instructions - motivated by greed and the pursuit of celebrity - were a crucial contributing factor. The owner should have been punished (in his future) for things that he has done (in his past). This is intuitively appealing.

Would we have rendered the same judgement had the Titanic's fate been the outcome of accident and accident alone? If the owner of the ship could have had no control over the circumstances of its horrible ending - would we have still condemned him for saving his life? Less severely, perhaps. So, the fact that a moral entity has ACTED (or omitted, or refrained from acting) in its past is essential in dispensing with future rewards or punishments.

The "product liability" approach also fits here. The owner (and his "long arms": manufacturer, engineers, builders, etc.) of the Titanic were deemed responsible because they implicitly contracted with their passengers. They made a representation (which was explicit in their case but is implicit in most others): "This ship was constructed with knowledge and forethought. The best design was employed to avoid danger. The best materials to increase pleasure." That the Titanic sank was an irreversible breach of this contract. In a way, it was an act of abrogation of duties and obligations. The owner/manufacturer of a product must compensate the consumers should his product harm them in any manner that they were not explicitly, clearly, visibly and repeatedly warned against. Moreover, he should even make amends if the product failed to meet the reasonable and justified expectations of consumers, based on such warrants and representations. The payment should be either in kind (as in more ancient justice systems) or in cash (as in modern Western civilization).

The product called "Titanic" took away the lives of its end-users. Our "gut justice" tells us that the owner should have paid in kind. Faulty engineering, insufficient number of lifeboats, over-capacity, hubris, passengers and crew not drilled to face emergencies, extravagant claims regarding the ship's resilience, contravening the captain's professional judgement. All these seem to be sufficient grounds to the death penalty.

And yet, this is not the real question. The serious problem is this : WHY should anyone pay in his future for his actions in the past? First, there are some thorny issues to be eliminated. Such as determinism: if there is no free will, there can be no personal responsibility. Another is the preservation of personal identity: are the person who committed the act and the person who is made to pay for it - one and the same? If the answer is in the affirmative, in which sense are they the same, the physical, the mental? Is the "overlap" only limited and probabilistic? Still, we could assume, for this discussion's sake, that the personal identity is undeniably and absolutely preserved and that there is free will and, therefore, that people can predict the outcomes of their actions, to a reasonable degree of accuracy and that they elect to accept these outcomes prior to the commission of their acts or to their omission. All this does not answer the question that opened this paragraph. Even if there were a contract signed between the acting person and the world, in which the person willingly, consciously and intelligently (=without diminished responsibility) accepted the future outcome of his acts, the questions would remain: WHY should it be so? Why cannot we conceive of a world in which acts and outcomes are divorced? It is because we cannot believe in an a-causal world.

Causality is a relationship (mostly between two things, or, rather, events, the cause and the effect). Something generates or produces another. Therefore, it is the other's efficient cause and it acts upon it (=it acts to bring it about) through the mechanism of efficient causation. A cause can be a direct physical mechanism or an explanatory feature (historical cause). Of Aristotle's Four Causes (Formal, Material, Efficient and Final), only the efficient cause creates something distinguishable from itself. The causal discourse, therefore, is problematic (how can a cause lead to an effect, indistinguishable from itself?). Singular Paradigmatic Causal Statements (Event A caused Event B) differ from General ones (Event A causes Event B). Both are inadequate in dealing with mundane, routine, causal statements

because they do not reveal an OVERT relation between the two events discussed. Moreover, in daily usage we treat facts (as well as events) as causes. Not all the philosophers are in agreement regarding factual causation. Davidson, for instance, admits that facts can be RELEVANT to causal explanations but refuses to accept them AS reasons. Acts may be distinct from facts, philosophically, but not in day-to-day regular usage. By laymen (the vast majority of humanity, that is), though, they are perceived to be the same.

Pairs of events that are each other's cause and effect are accorded a special status. But, that one follows the other (even if invariably) is insufficient grounds to endow them with this status. This is the famous "Post hoc, ergo propter hoc" fallacy. Other relations must be weighed and the possibility of common causation must be seriously contemplated. Such sequencing is, conceptually, not even necessary: simultaneous causation and backwards causation are part of modern physics, for instance.

Time seems to be irrelevant to the status of events, though both time and causation share an asymmetric structure (A causes B but B does not cause A). The direction (the asymmetry) of the causal chain is not of the same type as the direction (asymmetry) of time. The former is formal, the latter, presumably, physical, or mental. A more serious problem, to my mind, is the converse: what sets apart causal (cause and effect) pairs of events from other pairs in which both member-events are the outcomes of a common cause? Event B can invariably follow Event A and still not be its effect. Both events could have been caused by a common cause. A cause either necessitates the effect, or is a sufficient condition for its occurrence. The sequence is either inevitable, or possible. The meaninglessness of this sentence is evident.

Here, philosophers diverge. Some say (following Hume's reasoning and his constant conjunction relation between events) that a necessary causal relation exists between events when one is the inevitable outcome (=follows) the other. Others propound a weaker version: the necessity of the effect is hypothetical or conditional, given the laws of nature. Put differently: to say that A necessitates (=causes) B is no more than to say that it is a result of the laws of nature that when A happens, so does B. Hempel generalized this approach. He said that a statement of a fact (whether a private or a general fact) is explained only if deduced from other statements, at least one of which is a statement of a general scientific law.

This is the "Covering Law Model" and it implies a symmetry between explaining and predicting (at least where private facts are concerned). If an event can be explained, it could have been predicted and vice versa. Needless to say that Hempel's approach did not get us nearer to solving the problems of causal priority and of indeterministic causation.

The Empiricists went a step further. They stipulated that the laws of nature are contingencies and not necessary truths. Other chains of events are possible where the laws of nature are different. This is the same tired regularity theory in a more exotic guise. They are all descendants of Hume's definition of causality: "An object followed by another and where all the objects that resemble the first are followed by objects that resemble the second." Nothing in the world is, therefore, a causal necessity, events are only constantly conjoined. Regularities in our experience condition us to form the idea of causal necessity and to deduce that causes must generate events. Kant called this latter deduction "A bastard of the imagination, impregnated by experience" with no legitimate application in the world. It also constituted a theological impediment. God is considered to be "Causa Sui", His own cause. But any application of a causal chain or force, already assumes the existence of a cause. This existence cannot, therefore, be the

outcome of the use made of it. God had to be recast as the uncaused cause of the existence of all things contingent and His existence necessitated no cause because He, himself, is necessary. This is flimsy stuff and it gets even flimsier when the issue of causal deviance is debated.

A causal deviance is an abnormal, though causal, relation between events or states of the world. It mainly arises when we introduce intentional action and perception into the theory of causation. Let us revert to the much-maligned owner of the sinking Titanic. He intended to do one thing and another happened. Granted, if he intended to do something and his intention was the cause of his doing so - then we could have said that he intentionally committed an act. But what if he intended to do one thing and out came another? And what if he intended to do something, mistakenly did something else and, still, accidentally, achieved what he set out to do? The popular example is if someone intends to do something and gets so nervous that it happens even without an act being committed (intends to refuse an invitation by his boss, gets so nervous that he falls asleep and misses the party). Are these actions and intentions in their classical senses? There is room for doubt. Davidson narrows down the demands. To him, "thinking causes" (causally efficient propositional attitudes) are nothing but causal relations between events with the right application of mental predicates which ascribe propositional attitudes supervening the right application of physical predicates. This approach omits intention altogether, not to mention the ascription of desire and belief.

But shouldn't have the hapless owner availed his precious place to women and children? Should not he have obeyed the captain's orders (=the marine law)? Should we succumb to laws that put our lives at risk (fight in a war, sink with a ship)? The reason that women and children are preferred over men is that they represent the future. They are either capable of bringing life to the world (women) - or of living longer (children). Societal

etiquette reflects the arithmetic of the species, in this (and in many another) case. But if this were entirely and exclusively so, then young girls and female infants would have been preferred over all the other groups of passengers. Old women would have been left with the men, to die. That the actual (and declared) selection processes differed from our theoretical exercise says a lot about the vigorousness and applicability of our theories - and a lot about the real world out there. The owner's behaviour may have been deplorable - but it, definitely, was natural. He put his interests (his survival) above the concerns of his society and his species. Most of us would have done the same under the same circumstances.

The owner of the ship - though "Newly Rich" - undoubtedly belonged to the First Class, Upper Crust, Cream of Society passengers. These were treated to the lifeboats before the passengers of the lower classes and decks. Was this a morally right decision? For sure, it was not politically correct, in today's terms. Class and money distinctions were formally abolished three decades ago in the enlightened West. Discrimination between human beings is now allowed only on the basis of merit (=on the basis of one's natural endowments). Why should we think one basis for discrimination preferable to another? Can we eliminate discrimination completely and if it were possible, would it have been desirable?

The answers, in my view, are that no basis of discrimination can hold the moral high ground. They are all morally problematic because they are deterministic and assign independent, objective, exogenous values to humans. On the other hand, we are not born equal, nor do we proceed to develop equally, or live under the same circumstances and conditions. It is impossible to equate the unequal. Discrimination is not imposed by humans on an otherwise egalitarian world. It is introduced by the world into human society. And the elimination of discrimination would constitute a grave error. The inequalities among humans and the ensuing conflicts are the fuel

that feeds the engines of human development. Hopes, desires, aspirations and inspiration are all the derivatives of discrimination or of the wish to be favoured, or preferred over others. Disparities of money create markets, labour, property, planning, wealth and capital. Mental inequalities lead to innovation and theory. Knowledge differentials are at the heart of educational institutions, professionalism, government and so on. Osmotic and diffusive forces in human society are all the results of incongruences, disparities, differences, inequalities and the negative and positive emotions attached to them. The passengers of the first class were preferred because they paid more for their tickets. Inevitably, a tacit portion of the price went to amortize the costs of "class insurance": should anything bad happen to this boat, persons who paid a superior price will be entitled to receive a superior treatment. There is nothing morally wrong with this. Some people get to sit in the front rows of a theatre, or to travel in luxury, or to receive superior medical treatment (or any medical treatment) precisely because of this reason. There is no practical or philosophical difference between an expensive liver transplant and a place in a life boat. Both are lifesavers.

A natural disaster is no Great Equalizer. Nothing is. Even the argument that money is "external" or "accidental" to the rich individual is weak. Often, people who marry for money considerations are judged to be insincere or worse (cunning, conspiring, evil). "He married her for her money", we say, as though the she-owner and the money were two separate things. The equivalent sentence: "He married her for her youth or for her beauty" sounds flawed. But youth and beauty are more temporary and transient than money. They are really accidental because the individual has no responsibility for or share in their generation and has no possibility to effect their long-term preservation. Money, on the other hand, is generated or preserved (or both) owing to the personality of its owner. It is a better reflection of personality than youth, beauty and many other (transient or situation-dependent) "character" traits. Money is an integral part of its

owner and a reliable witness as to his mental disposition. It is, therefore, a valid criterion for discrimination.

The other argument in favour of favouring the first class passengers is their contribution to society. A rich person contributes more to his society in the shorter and medium term than a poor person. Vincent Van Gogh may have been a million times more valuable to humanity, as a whole, than his brother Theo - in the long run. But in the intermediate term, Theo made it possible for Vincent and many others (family, employees, suppliers, their dependants and his country) to survive by virtue of his wealth. Rich people feed and cloth poor people directly (employment, donations) and indirectly (taxation). The opposite, alas, is not the case. Yet, this argument is flawed because it does not take time into account. We have no way to predict the future with any certainty.

Each person carries the Marshall's baton in his bag, the painter's brush, the author's fables. It is the potential that should count. A selection process, which would have preferred Theo to Vincent would have been erroneous. In the long run, Vincent proved more beneficial to human society and in more ways - including financially - than Theo could have ever been.

Being John Malkovich

By: Dr. Sam Vaknin

A quintessential loser, an out-of-job puppeteer, is hired by a firm, whose offices are ensconced in a half floor (literally. The ceiling is about a metre high, reminiscent of Taniel's hallucinatory Alice in Wonderland illustrations). By sheer accident, he discovers a tunnel (a "portal", in Internet-age parlance), which sucks its visitors into the mind of the celebrated actor, John Malkovich. The movie is a tongue in cheek discourse

of identity, gender and passion in an age of languid promiscuity. It poses all the right metaphysical riddles and presses the viewers' intellectual stimulation buttons.

A two line bit of dialogue, though, forms the axis of this nightmarishly chimerical film. John Malkovich (played by himself), enraged and bewildered by the unabashed commercial exploitation of the serendipitous portal to his mind, insists that Craig, the aforementioned puppet master, cease and desist with his activities. "It is MY brain" - he screams and, with a typical American finale, "I will see you in court". Craig responds: "But, it was I who discovered the portal. It is my livelihood".

This apparently innocuous exchange disguises a few very unsettling ethical dilemmas.

The basic question is "whose brain is it, anyway"? Does John Malkovich OWN his brain? Is one's brain - one's PROPERTY? Property is usually acquired somehow. Is our brain "acquired"? It is clear that we do not acquire the hardware (neurones) and software (electrical and chemical pathways) we are born with. But it is equally clear that we do "acquire" both brain mass and the contents of our brains (its wiring or irreversible chemical changes) through learning and experience. Does this process of acquisition endow us with property rights?

It would seem that property rights pertaining to human bodies are fairly restricted. We have no right to sell our kidneys, for instance. Or to destroy our body through the use of drugs. Or to commit an abortion at will. Yet, the law does recognize and strives to enforce copyrights, patents and other forms of intellectual property rights.

This dichotomy is curious. For what is intellectual property but a mere record of the brain's activities? A book, a painting, an invention are the

documentation and representation of brain waves. They are mere shadows, symbols of the real presence - our mind. How can we reconcile this contradiction? We are deemed by the law to be capable of holding full and unmitigated rights to the PRODUCTS of our brain activity, to the recording and documentation of our brain waves. But we hold only partial rights to the brain itself, their originator.

This can be somewhat understood if we were to consider this article, for instance. It is composed on a word processor. I do not own full rights to the word processing software (merely a licence), nor is the laptop I use my property - but I possess and can exercise and enforce full rights regarding this article.

Admittedly, it is a partial parallel, at best: the computer and word processing software are passive elements. It is my brain that does the authoring. And so, the mystery remains: how can I own the article - but not my brain? Why do I have the right to ruin the article at will - but not to annihilate my brain at whim?

Another angle of philosophical attack is to say that we rarely hold rights to nature or to life. We can copyright a photograph we take of a forest - but not the forest. To reduce it to the absurd: we can own a sunset captured on film - but never the phenomenon thus documented. The brain is natural and life's pivot - could this be why we cannot fully own it?

Wrong premises inevitably lead to wrong conclusions. We often own natural objects and manifestations, including those related to human life directly. We even issue patents for sequences of human DNA. And people do own forests and rivers and the specific views of sunsets.

Some scholars raise the issues of exclusivity and scarcity as the precursors of property rights. My brain can be accessed only by myself and

its is one of a kind (*sui generis*). True but not relevant. One cannot rigorously derive from these properties of our brain a right to deny others access to them (should this become technologically feasible) - or even to set a price on such granted access. In other words, exclusivity and scarcity do not constitute property rights or even lead to their establishment. Other rights may be at play (the right to privacy, for instance) - but not the right to own property and to derive economic benefits from such ownership.

On the contrary, it is surprisingly easy to think of numerous exceptions to a purported natural right of single access to one's brain. If one memorized the formula to cure AIDS or cancer and refused to divulge it for a reasonable compensation - surely, we should feel entitled to invade his brain and extract it? Once such technology is available - shouldn't authorized bodies of inspection have access to the brains of our leaders on a periodic basis? And shouldn't we all gain visitation rights to the minds of great men and women of science, art and culture - as we do today gain access to their homes and to the products of their brains?

There is one hidden assumption, though, in both the movie and this article. It is that mind and brain are one. The portal leads to John Malkovich's MIND - yet, he keeps talking about his BRAIN and writhing physically on the screen. The portal is useless without JM's mind. Indeed, one can wonder whether JM's mind is not an INTEGRAL part of the portal - structurally and functionally inseparable from it. If so, does not the discoverer of the portal hold equal rights to John Malkovich's mind, an integral part thereof?

The portal leads to JM's mind. Can we prove that it leads to his brain? Is this identity automatic? Of course not. It is the old psychophysical question, at the heart of dualism - still far from resolved. Can a MIND be copyrighted or patented? If no one knows WHAT is the mind - how can it be the subject

of laws and rights? If JM is bothered by the portal voyagers, the intruders - he surely has legal recourse, but not through the application of the rights to own property and to benefit from it. These rights provide him with no remedy because their subject (the mind) is a mystery.

Can JM sue Craig and his clientele for unauthorized visits to his mind (trespassing) - IF he is unaware of their comings and goings and unperturbed by them? Moreover, can he prove that the portal leads to HIS mind, that it is HIS mind that is being visited? Is there a way to PROVE that one has visited another's mind? (See: "On Empathy").

And if property rights to one's brain and mind were firmly established - how will telepathy (if ever proven) be treated legally? Or mind reading? The recording of dreams? Will a distinction be made between a mere visit - and the exercise of influence on the host and his / her manipulation (similar questions arise in time travel)?

This, precisely, is where the film crosses the line between the intriguing and the macabre. The master puppeteer, unable to resist his urges, manipulates John Malkovich and finally possesses him completely. This is so clearly wrong, so manifestly forbidden, so patently immoral, that the film loses its urgent ambivalence, its surrealistic moral landscape and deteriorates into another banal comedy of situations.

Dreamcatcher - The Myth of Destructibility

By: Dr. Sam Vaknin

Read these essays first:

The Habitual Identity

Death, Meaning, and Identity

Being John Malkovich

"Shattered" Identity

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In the movie "Dreamcatcher", four childhood friends, exposed to an alien, disguised as a retarded child, develop psychic powers. Years later they reunite only to confront a vicious extraterrestrial life-form. Only two survive but they succeed to eradicate the monster by incinerating it and crushing its tiny off-spring underfoot.

Being mortal ourselves, we cannot conceive of an indestructible entity. The artifacts of popular culture - thrillers, action and sci-fi films, video games, computer viruses - assume that all organisms, organizations and automata possess fatal vulnerabilities. Medicine and warfare are predicated on a similar contention.

We react with shock and horror when we are faced with "resistant stains" of bacteria or with creatures, machines, or groups able to survive and thrive in extremely hostile environments.

Destruction is multi-faceted. Even the simplest system has a structure and performs functions. If the spatial continuity or arrangement of an entity's structure is severed or substantially transformed - its functions are usually adversely affected. Direct interference with a system's functionality is equally deleterious.

We can render a system dysfunctional by inhibiting or reversing any stage in the complex processes involved - or by preventing the entity's communication with its environs. Another method of annihilation involves

the alteration of the entity's context - its surroundings, its codes and signals, its interactive patterns, its potential partners, friends and foes.

Finding the lethal weaknesses of an organism, an apparatus, or a society is described as a process of trial and error. But the outcome is guaranteed: mortal susceptibility is assumed to be a universal trait. No one and nothing is perfectly immune, utterly invulnerable, or beyond extermination.

Yet, what is poison to one species is nectar to another. Water can be either toxic or indispensable, depending on the animal, the automaton, or the system. Scorching temperatures, sulfur emissions, ammonia or absolute lack of oxygen are, to some organisms, the characteristics of inviting habitats. To others, the very same are deadly.

Can we conceive of an indestructible thing - be it unicellular or multicellular, alive or robotic, composed of independent individuals or acting in perfect, centrally-dictated unison? Can anything be, in principle, eternal?

This question is not as outlandish as it sounds. By fighting disease and trying to postpone death, for instance, we aspire to immortality and imperishability. Some of us believe in God - an entity securely beyond ruin. Intuitively, we consider the Universe - if not time and space - to be everlasting, though constantly metamorphosing.

What is common to these examples of infinite resilience is their unbounded and unparalleled size and might. Lesser objects are born or created. Since there has been a time, prior to their genesis, in which they did not exist - it is easy to imagine a future without them.

Even where the distinction between individual and collective is spurious their end is plausible. True, though we can obliterate numerous "individual"

bacteria - others, genetically identical, will always survive our onslaught. Yet, should the entire Earth vanish - so would these organisms. The extinction of all bacteria, though predicated on an unlikely event, is still thinkable.

But what about an entity that is "pure energy", a matrix of fields, a thought, immaterial yet very real, omnipresent and present nowhere? Such a being comes perilously close to the divine. For if it is confined to certain space - however immense - it is perishable together with that space. If it is not - then it is God, as perceived by its believers.

But what constitutes "destruction" or "annihilation"? We are familiar with death - widely considered the most common form of inexistence. But some people believe that death is merely a transformation from one state of being to another. Sometimes all the constituents of a system remain intact but cease to interact. Does this amount to obliteration? And what about a machine that stops interacting with its environment altogether - though its internal processes continue unabated. Is it still "functioning"?

It is near impossible to say when a "live" or "functioning" entity ceases to be so. Death is the form of destruction we are most acquainted with. For a discussion of death and the human condition - read this *Death, Meaning, and Identity*

THE AUTHOR

SHMUEL (SAM) VAKNIN

Curriculum Vitae

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Born in 1961 in Qiryat-Yam, Israel.

Served in the Israeli Defence Force (1979-1982) in training and education units.

Education

Graduated a few semesters in the Technion - Israel Institute of Technology, Haifa.

Ph.D. in Philosophy (major : Philosophy of Physics) - Pacific Western University, California.

Graduate of numerous courses in Finance Theory and International Trading.

Certified E-Commerce Concepts Analyst.

Certified in Psychological Counselling Techniques.

Full proficiency in Hebrew and in English.

Business Experience

1980 to 1983

Founder and co-owner of a chain of computerized information kiosks in Tel-Aviv, Israel.

1982 to 1985

Senior positions with the Nessim D. Gaon Group of Companies in Geneva,
Paris and New-York (NOGA and APROFIM SA):

- Chief Analyst of Edible Commodities in the Group's Headquarters in Switzerland.
- Manager of the Research and Analysis Division
- Manager of the Data Processing Division
- Project Manager of The Nigerian Computerized Census
- Vice President in charge of RND and Advanced Technologies
- Vice President in charge of Sovereign Debt Financing

1985 to 1986

Represented Canadian Venture Capital Funds in Israel.

1986 to 1987

General Manager of IPE Ltd. in London. The firm financed international multi-lateral countertrade and leasing transactions.

1988 to 1990

Co-founder and Director of "Mikbats - Tesuah", a portfolio management firm based in Tel-Aviv.

Activities included large-scale portfolio management, underwriting, forex trading and general financial advisory services.

1990 to Present

Free-lance consultant to many of Israel's Blue-Chip firms, mainly on issues related to the capital markets in Israel, Canada, the UK and the USA.

Consultant to foreign RND ventures and to Governments on macro-economic matters.

President of the Israel chapter of the Professors World Peace Academy (PWPA) and (briefly) Israel representative of the "Washington Times".

1993 to 1994

Co-owner and Director of many business enterprises:

- The Omega and Energy Air-Conditioning Concern
- AVP Financial Consultants
- Handiman Legal Services

Total annual turnover of the group: 10 million USD.

Co-owner, Director and Finance Manager of COSTI Ltd. - Israel's largest computerized information vendor and developer. Raised funds through a series of private placements locally, in the USA, Canada and London.

1993 to 1996

Publisher and Editor of a Capital Markets Newsletter distributed by subscription only to dozens of subscribers countrywide.

In a legal precedent in 1995 - studied in business schools and law faculties across Israel - was tried for his role in an attempted takeover of Israel's Agriculture Bank.

Was interned in the State School of Prison Wardens.

Managed the Central School Library, wrote, published and lectured on various occasions.

Managed the Internet and International News Department of an Israeli mass media group, "Ha-Tikshoret and Namer".

Assistant in the Law Faculty in Tel-Aviv University (to Prof. S.G. Shoham).

1996 to 1999

Financial consultant to leading businesses in Macedonia, Russia and the Czech Republic.

Collaborated with the Agency of Transformation of Business with Social Capital.

Economic commentator in "Nova Makedonija", "Dnevnik", "Izvestia", "Argumenti i Fakti", "The Middle East Times", "Makedonija Denes", "The New Presence", "Central Europe Review" , and other periodicals and in the economic programs on various channels of Macedonian Television.

Chief Lecturer in courses organized by the Agency of Transformation, by the Macedonian Stock Exchange and by the Ministry of Trade.

1999 to 2002

Economic Advisor to the Government of the Republic of Macedonia and to the Ministry of Finance.

2001 to present

Senior Business Correspondent for United Press International (UPI)

Web and Journalistic Activities

Author of extensive Websites in Psychology ("Malignant Self Love") -
An Open Directory Cool Site

Philosophy ("Philosophical Musings")

Economics and Geopolitics ("World in Conflict and Transition")

Owner of the Narcissistic Abuse Announcement and Study List and the
Narcissism Revisited mailing list (more than 3900 members)

Owner of the Economies in Conflict and Transition Study list.

Editor of mental health disorders and Central and Eastern Europe
categories in web directories (Open Directory, Suite 101, Search Europe).

Columnist and commentator in "The New Presence", United Press
International (UPI), InternetContent, eBookWeb and "Central Europe
Review".

Publications and Awards

"Managing Investment Portfolios in states of Uncertainty", Limon
Publishers, Tel-Aviv, 1988

"The Gambling Industry", Limon Publishers., Tel-Aviv, 1990

"Requesting my Loved One - Short Stories", Yedioth Aharonot, Tel-Aviv,
1997

"The Macedonian Economy at a Crossroads - On the way to a Healthier
Economy" (with Nikola Gruevski), Skopje, 1998

"Malignant Self Love - Narcissism Revisited", Narcissus Publications,
Prague and Skopje, 1999, 2001, 2002

The Narcissism Series - e-books regarding relationships with abusive narcissists (Skopje, 1999-2002)

"The Exporters' Pocketbook", Ministry of Trade, Republic of Macedonia, Skopje, 1999

"The Suffering of Being Kafka" (electronic book of Hebrew Short Fiction, Prague, 1998)

"After the Rain - How the West Lost the East", Narcissus Publications in association with Central Europe Review/CEENMI, Prague and Skopje, 2000

Winner of numerous awards, among them the Israeli Education Ministry Prize (Literature) 1997, The Rotary Club Award for Social Studies (1976) and the Bilateral Relations Studies Award of the American Embassy in Israel (1978).

Hundreds of professional articles in all fields of finances and the economy and numerous articles dealing with geopolitical and political economic issues published in both print and web periodicals in many countries.

Many appearances in the electronic media on subjects in philosophy and the Sciences and concerning economic matters.

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Psychology:

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Philosophy:

<http://philosophos.tripod.com/>

Poetry:

<http://samvak.tripod.com/contents.html>

Return

After the Rain

How the West

Lost the East

The Book

This is a series of articles written and published in 1996-2000 in Macedonia, in Russia, in Egypt and in the Czech Republic.

How the West lost the East. The economics, the politics, the geopolitics, the conspiracies, the corruption, the old and the new,

the plough and the internet - it is all here, in colourful and provocative prose.

From "The Mind of Darkness":

"'The Balkans' - I say - 'is the unconscious of the world'. People stop to digest this metaphor and then they nod enthusiastically. It is here that the repressed memories of history, its traumas and fears and images reside. It is here that the psychodynamics of humanity - the tectonic clash between Rome and Byzantium, West and East, Judeo-Christianity and Islam - is still easily discernible. We are seated at a New Year's dining table, loaded with a roasted pig and exotic salads. I, the Jew, only half foreign to this cradle of Slavonics. Four Serbs, five Macedonians. It is in the Balkans that all ethnic distinctions fail and it is here that they prevail anachronistically and atavistically. Contradiction and change the only two fixtures of this tormented region. The women of the Balkan - buried under provocative mask-like make up, retro hairstyles and too narrow dresses. The men, clad in sepia colours, old fashioned suits and turn of the century moustaches. In the background there is the crying game that is Balkanian music: liturgy and folk and elegy combined. The smells are heavy with muskular perfumes. It is like time travel. It is like revisiting one's childhood."

The Author

Sam Vaknin is the author of Malignant Self Love - Narcissism Revisited and After the Rain - How the West Lost the East. He is a columnist for Central Europe Review and eBookWeb , a United Press International (UPI)

Senior Business Correspondent, and the editor of mental health and Central East Europe categories in The Open Directory and Suite101.

Until recently, he served as the Economic Advisor to the Government of Macedonia.

Visit Sam's Web site at <http://samvak.tripod.com>

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